

## 24STCV17735 24STCV17735

County: los-angeles

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Department: 408

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Case Number: 24STCV17735 Hearing Date: September 10, 2026 Dept: 408

1.

Defendant Jonathan Everett

Mills' Motion for Terminating Sanctions

is DENIED.

2.

Plaintiff Shiloh Parker's Motion for Sanctions for Misuse of

the Discovery Process (Ex Parte Communications) as to Defendant Jonathan Everett Mills is DENIED.

3.

Plaintiff Shiloh Parker's Motion for Sanctions for Violations of Code

of Civil Procedure § 2023.010(i) as to Defendant Jonathan Everett Mills is DENIED.

4.

Plaintiff Shiloh Parker's Motion for Sanctions Pursuant to Code of Civil Procedure § 128.7 as to

Defendant Jonathan Everett Mills is DENIED.

5.

Plaintiff Shiloh Parker's Motion for Sanctions for Violations of Code

of Civil Procedure § 2023.010(B) and (C) as to

Defendant Jonathan Everett Mills is DENIED.

6.

Plaintiff Shiloh Parker's Motion for Sanctions for Misuse

of the Discovery Process (Special Interrogatories, Set Three) as to Defendant

Jonathan Everett Mills is DENIED.

7.

Plaintiff Shiloh Parker's Motion for Sanctions for Misuse  
of the Discovery Process (Special Interrogatories, Set Four) as to Defendant Jonathan Everett  
Mills is DENIED.

8.

Plaintiff Shiloh Parker's Motion for Sanctions for Misuse  
of the Discovery Process (Hiding Evidence and Disobeying Order) as to Defendant Jonathan Everett Mills  
is DENIED.

I.

#### BACKGROUND

On July 16, 2024, Plaintiff Shiloh Parker ("Plaintiff") filed a complaint  
against Defendants Jonathan Everett Mills ("Mills") and Durden and Mills, P.C.  
("Durden") alleging causes of action for:

1.

Civil Extortion;

2.

Civil Conspiracy;

3.

Abuse of Process; and

4.

Unfair Business Practice.

On August 5, 2024, Plaintiff filed a First Amended Complaint ("FAC")  
against Defendants Mills, Durden, Robert John Lamb ("Lamb"), Daniel Freeland  
("Freeland"), and Enrique Rivera ("Rivera") alleging causes of action for:

1.

Civil Extortion;

2.

Abuse of Process;

3.

Malicious Prosecution;

4.

Intentional Infliction of Emotional Distress;

5.

Negligent Infliction of Emotional Distress; and

6.

Unfair Business Practice.

On February 27, 2024,

Plaintiff filed a Second Amended Complaint ("SAC").

On June 12, 2025, pursuant to an oral request by Plaintiff, the court dismissed Freeland and Rivera from Plaintiff's SAC without prejudice.

On July 28, 2025, Plaintiff filed a Third Amended Complaint ("TAC") alleging causes of action for:

1.

Civil Extortion;

2.

Abuse of Process;

3.

Malicious Prosecution;

4.

Unfair Business Practice; and

5.

Slander Per Se.

On October 13, 2025, the court denied, in part, Mills and Durden's Motion to Quash Service of Summons and Complaint as to Mills and granted, in part, as to Durden as it had not been served with Plaintiff's TAC; denied, as moot, Plaintiff's Motion to Continue Specially Appearing Defendants' Motion to Quash Service of Summons; and denied, as moot, Plaintiff's Motion for Leave to Conduct Jurisdictional Discovery as to Specially Appearing Defendants.

On January 20, 2026, the court granted Plaintiff's Motion for Leave to File a Fourth Amended Complaint, overruled Mills' Demurrer, and denied the Motion to Strike to Plaintiff's TAC, as moot.

On January 20, 2026, Plaintiff filed a Fourth Amended Complaint ("4AC") against Mills and Lamb ("Defendants") alleging causes of action for:

1.  
Civil Extortion;
2.  
Abuse of Process; and
3.  
Defamation/Slander Per Se.

On March 5, 2026, the court denied Plaintiff's Motion to Compel Further Responses to Form Interrogatories, Set One; denied, in part, and granted, in part, Plaintiff's Motion to Compel Further Responses to Special Interrogatories, Set One; denied Mills' Motions for Protective Order; and denied Plaintiff's Motion for Sanctions.

On April 9, 2026, the court overruled Mills' Demurrer and denied the Motion to Strike as to Plaintiff's 4AC.

On April 17, 2026, Mills filed an answer to Plaintiff's 4AC.

On August 5, 2026, the court overruled Plaintiff's Demurrer to Mills' answer to Plaintiff's 4AC.

On March 3, 2026, Plaintiff filed this Motion for Sanctions for Violations of Code of Civil Procedure section 2023.010(i) as to Mills. On March 26, 2026, Mills filed an opposition. On April 1, 2026, Plaintiff filed a reply.

On March 30, 2026, Plaintiff

filed this Motion for Sanctions for Violations of Code of Civil Procedure section 2023.010(B) and (C) as to Mills. On August 10, 2026, Mills filed an opposition. On August 25, 2026, Plaintiff filed a reply.

On May 12, 2026, Plaintiff filed this Motion for Sanctions pursuant to Code of Civil Procedure section 128.7 as to Mills. On August 27, 2026, Mills filed an opposition. On August 31, 2026, Plaintiff filed a reply.

On June 22, 2026, Plaintiff filed this Motion for Sanctions for Misuse of the Discovery Process (Ex Parte Communications) as to Mills. On July 30, 2026, Mills filed an opposition. On August 3, 2026, Plaintiff filed a reply.

On June 22, 2026, Plaintiff filed this Motion for Sanctions for Misuse of the Discovery Process (Special Interrogatories, Set Three) as to Mills. On August 27, 2026, Mills filed an opposition. On September 2, 2026, Plaintiff filed a reply.

On June 22, 2026, Plaintiff filed this Motion for Sanctions for Misuse of the Discovery Process (Special Interrogatories, Set Four) as to Mills. On August 27, 2026, Mills filed an opposition. On September 4, 2026, Plaintiff filed a reply.

On June 26, 2026, Plaintiff filed this Motion for Sanctions for Misuse of the Discovery Process (Hiding Evidence and Disobeying Order) as to Mills. On August 27, 2026, Mills filed an opposition. On September 1, 2026, Plaintiff filed a reply.

On July 22, 2026, Mills filed this Motion for Terminating Sanctions. On August 26, 2026, Plaintiff filed an opposition. On September 3, 2026, Mills filed a reply.

II.

MOTION

FOR TERMINATING SANCTIONS

A. Legal Standard

Code of Civil Procedure section

2023.030 gives the court the discretion to impose sanctions against anyone engaging in a misuse of the discovery process. A court may impose terminating sanctions by striking pleadings of the party engaged in misuse of discovery or entering default judgment. (Code Civ. Proc., § 2023.030, subd. (d).)

A violation of a discovery order is

sufficient for the imposition of terminating sanctions. (Collison & Kaplan v. Hartunian (1994) 21 Cal.App.4th 1611, 1620.) Terminating sanctions are appropriate when a party persists in disobeying the court's orders. (Deyo v. Kilbourne (1978) 84 Cal.App.3d 771, 795-796.)

A terminating sanction is a

"drastic measure which should be employed with caution." (Deyo, supra, 84 Cal.App.3d at 793.) "A decision to order terminating sanctions should not be made lightly. But where a violation is willful, preceded by a history of abuse, and the evidence shows that less severe sanctions would not produce compliance with the discovery rules, the trial court is justified in imposing the ultimate sanction." (Mileikowsky v. Tenet Healthsystem (2005) 128 Cal.App.4th 262, 279-280.)

While the court has discretion to

impose terminating sanctions, these sanctions "should be appropriate to the dereliction and should not exceed that which is required to protect the interests of the party entitled to but denied discovery." (Deyo, supra, 84 Cal.App.3d at 793.) "[A] court is empowered to apply the ultimate sanction against a litigant who persists in the outright refusal to comply with his discovery obligations." (Ibid.) Discovery sanctions are not to be imposed for punishment, but instead are used to encourage fair disclosure of discovery to prevent unfairness resulting from the lack of information. (Midwife v. Bernal (1988) 203 Cal.App.3d 57, 64 [superseded on other grounds as stated in Kohan v. Cohan (1991) 229 Cal.App.3d 967, 971].)

"A trial court has broad

discretion to impose discovery sanctions, but two facts are generally prerequisite to the imposition of nonmonetary sanctions . . . (1) absent unusual circumstances, there must be a failure to comply with a court order, and (2) the failure must be willful." (Biles v. Exxon Mobil Corp. (2004) 124 Cal.App.4th 1315, 1327; but see Reedy v. Bussell (2007) 148 Cal.App.4th 1272, 1291 ["willfulness is no longer a requirement for the

imposition of discovery sanctions."].)

## B. Discussion

Mills moves the court to issue terminating sanctions against Plaintiff and dismissing the instant action. (Motion, at p. 3.) Mills argues that Plaintiff has engaged in a continuing abuse of the discovery process as Plaintiff failed to provide code-compliant responses to Mills' interrogatory requests, provided evasive responses to such requests, and disobeyed the court orders compelling Plaintiff to provide further responses. (Id., at pp. 7-9.) Mills also argues that monetary sanctions previously imposed against Plaintiff have failed to secure compliance and terminating sanction are proportionate to the harm Plaintiff caused Mills due to such willful obstruction of the discovery process. (Ibid.)

In opposition, Plaintiff argues that terminating sanctions are not warranted as Plaintiff has served supplemental responses and filed a notice to the court of her inability to comply with the monetary sanctions issued against her. (Opp., at pp. 6-7.)

The court finds that the imposition of terminating sanctions is not warranted based on the totality of the circumstances. (Lang v. Hochman (2000) 77 Cal.App.4th 1225, 1246 [the court must consider "the totality of the circumstances: conduct of the party to determine if the actions were willful; the detriment to the propounding party; and the number of formal and informal attempts to obtain the discovery" to impose terminating sanctions].) To impose terminating sanctions and dismiss Plaintiff's action at this point is an overly harsh remedy at this point in the proceedings.

III.

## MOTION FOR SANCTIONS FOR MISUSE OF THE DISCOVERY PROCESS (EX PARTE COMMUNICATIONS)

### A. Legal Standard

Code of Civil Procedure section 2023.030 gives the court the discretion to impose sanctions against anyone engaging in a misuse of the discovery process. "The court may impose a monetary sanction ordering that one engaging in the misuse of the discovery process, or any attorney advising that

conduct, or both pay the reasonable expenses, including attorney's fees, incurred by anyone as a result of that conduct. The court may also impose this sanction on one unsuccessfully asserting that another has engaged in the misuse of the discovery process, or on any attorney who advised that assertion, or on both. If a monetary sanction is authorized by any provision of this title, the court shall impose that sanction unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust." (Code Civ. Proc., § 2023.030, subd. (a).)

#### B. Discussion

Plaintiff moves for monetary sanctions against Mills and his counsel for engaging in ex parte communications with the court regarding pending discovery disputes between the parties to undermine the discovery process. (Motion, at p. 1.)

In opposition, Mills demonstrates that Mills'

written communications to the court are not considered ex parte and were not improper because a copy of all communications were furnished to Plaintiff on the day sent. (Opp., at pp. 4-5.)

The court finds that sanctions against Mills and his counsel are not warranted based on the information provided. Although the parties concede that Mills sent the court a letter outlining certain discovery disputes in preparation of an informal discovery conference, Mills also furnished such letter to Plaintiff. The court finds that there is no misconduct to sanction. (Cal. Rules of Prof. Conduct, rule 3.5, subd. (b).)

Accordingly, the motion is denied.

#### IV.

#### MOTION

FOR SANCTIONS FOR VIOLATIONS OF CODE OF CIVIL PROCEDURE § 2023.010(i)

#### A. Legal Standard

Code of Civil Procedure section

2023.030(a) gives the court the discretion to impose monetary sanctions against anyone engaging in a misuse of the discovery process. (Code Civ. Proc., § 2023.030, subd. (a).) Misuses of the discovery process includes “[f]ailing to confer or to attempt to confer, in person, by telephone, or by videoconference with an opposing party or attorney in a reasonable and good faith attempt to resolve informally any dispute concerning discovery[.]” (Code Civ. Proc., § 2023.010, subd. (i).)

#### B. Discussion

Plaintiff moves for monetary sanctions against Mills and his counsel for refusing to engage in reasonable and good faith meet and confer efforts to resolve discovery disputes informally. (Motion, at p. 1.)

In opposition, Mills demonstrates that Mills’ counsel has attempted to meet and confer with Plaintiff in good faith on several occasions in hopes that the parties could resolve various discovery issues without court intervention. (Opp., at pp. 3-4.)

The court finds that sanctions are not warranted against Mills as it is apparent that Mills’ counsel has made meaningful attempts to meet and confer with Plaintiff. It appears that Plaintiff’s struggles in the meet and confer process with Mills arise, at least in part, from Plaintiff’s own failure to cooperate in resolving the overwhelming number of discovery issues presented to the court and the inability of the parties to communicate effectively through electronic means.

Accordingly,  
the motion is denied.

V.

MOTION FOR SANCTIONS PURSUANT TO CODE OF CIVIL PROCEDURE § 128.7

#### A. Legal Standard

An attorney or unrepresented party who presents a motion to the court makes an implied certification as to its legal and factual merit, which is subject to

sanctions for violation of this certification under Code of Civil Procedure section 128.7. (Murphy v. Yale Materials Handling Corp. (1997) 54 Cal.App.4th 619, 623.) The court may impose sanctions for conduct that violates any one of the requirements set forth in Code of Civil Procedure section 128.7(b). (Eichenbaum v. Alon (2003) 106 Cal.App.4th 967, 976.) Only "an attorney or unrepresented party may be sanctioned" under the statute. (In re Marriage of Reese & Guy (1999) 73 Cal.App.4th 1214, 1221.) Code of Civil Procedure section 128.7(b) provides:

(b) By presenting to the court, whether by signing, filing, submitting, or later advocating, a pleading, petition, written notice of motion, or other similar paper, an attorney or unrepresented party is certifying that to the best of the person's knowledge, information, and belief, formed after an inquiry reasonable under the circumstances, all of the following conditions are met:

(1)

It is not being presented primarily for an improper purpose, such as to harass or to cause unnecessary delay or needless increase in the cost of litigation.

(2)

The claims, defenses, and other legal contentions therein are warranted by existing law or by a non-frivolous argument for the extension, modification, or reversal of existing law or the establishment of new law.

(3)

The allegations and other factual contentions have evidentiary support or, if specifically so identified, are likely to have evidentiary support after a reasonable opportunity for further investigation or discovery.

(4)

The denials of factual contentions are warranted on the evidence or, if specifically so identified, are reasonably based on a lack of information or belief.

(Code Civ. Proc., § 128.7, subd. (b).)

“Under section 128.7, a court may impose sanctions if it concludes a pleading was filed for an improper purpose or was indisputably without merit, either legally or factually. [Citation.]” (Bucur v. Ahmad (2016)

244 Cal.App.4th 175, 189.) “A claim is factually frivolous if it is ‘not well grounded in fact’ and is legally frivolous if it is ‘not warranted by existing law or a good faith argument for the extension, modification, or reversal of existing law.’ [Citation.] In either case, to obtain sanctions, the moving party must show the party’s conduct in asserting the claim was objectively unreasonable. [Citation.] A claim is objectively unreasonable if ‘any reasonable attorney would agree that [it] is totally and completely without merit.’ [Citations.]” (Ibid.) No showing of bad faith is required. (In re Marriage of Reese & Guy, supra, 73 Cal.App.4th at 1221.)

“The California Legislature essentially sought to replicate rule 11 [of the Federal Rules of Civil Procedure] when it enacted section 128.7.” (Musaelian v. Adams (2009) 45 Cal.4th 512, 518, fn. 2.) As a result, federal case law construing rule 11 is persuasive authority on the meaning of Code of Civil Procedure section 128.7. (Guillemin v. Stein (2002) 104 Cal.App.4th 156, 167.) Under rule 11, even though an action may not be frivolous when it is filed, it may become so if later-acquired evidence refutes the findings of a pre-filing investigation and the attorney continues to file papers supporting the client’s claims. (Childs v. State Farm Mutual Automobile Insurance Company (5th Cir. 1994) 29 F.3d 1018, 1024-1026.) As a result, a plaintiff’s attorney cannot “just cling tenaciously to the investigation he had done at the outset of the litigation and bury his head in the sand.” (Id., at 1025.)

In addition, Code of Civil Procedure section 128.7 “contains a safe harbor provision. It requires the party seeking sanctions to serve on the opposing party, without filing or presenting it to the court, a notice of motion specifically describing the sanctionable conduct. Service of the motion initiates a 21-day ‘hold’ or ‘safe harbor’ period. [Citations] During this time, the offending document may be corrected or withdrawn without penalty. If that occurs, the motion for sanctions “shall not” be filed. [Citations] By mandating a 21-day safe harbor period to allow correction or withdrawal of an offending document, section 128.7 is designed to be remedial, not punitive. [Citation]” (Li v. Majestic Industry Hills, LLC (2009) 177 Cal.App.4th 585, 590-591 [emphasis added].)

## B. Discussion

Plaintiff moves for sanctions against Mills' counsel based on counsel's failure to withdraw their motions to quash the service of the deposition subpoenas for Mills' counsel, Sofia Torrez and Howard J. Franco, Jr., as Plaintiff allegedly withdrew the subpoenas in question. (Motion, at p. 1.)

As

noted in the opposition, the court ruled that Mills' motions to quash were moot as Plaintiff withdrew such subpoenas and denied Plaintiff's motion for leave to conduct limited discovery of Mills' counsel. (Court Order, dated June 18, 2026; Opp., at p. 4.) The court does not find that Counsel's motions were filed for an improper purpose or were indisputably without merit to impose sanctions under Section 128.7. Mills' counsel had grounds to file such motions and the court ruled accordingly.

Accordingly, the motion is denied.

VI.

MOTION

FOR SANCTIONS FOR VIOLATIONS OF CODE OF CIVIL PROCEDURE § 2023.010(B) and (C)

A. Legal Standard

Code of Civil Procedure section

2023.030(a) gives the court the discretion to impose monetary sanctions against anyone engaging in a misuse of the discovery process. (Code Civ. Proc., § 2023.030, subd. (a).) Misuses of the discovery process includes: "(b) Using a discovery method in a manner that does not comply with its specified procedures" and "(c) Employing a discovery method in a manner or to an extent that causes unwarranted annoyance, embarrassment, or oppression, or undue burden and expense." (Code Civ. Proc., § 2023.010, subd. (b), (c).)

B. Discussion

Plaintiff moves for monetary sanctions

against Mills and his counsel for issuing an excessive amount of discovery requests at once and serving a privilege log that does not comply with existing law. (Motion, at p. 1.) Plaintiff argues that such purported misuse of the discovery process has resulted in unwarranted annoyance and undue

burden on Plaintiff. (Ibid.)

The court does not find that sanctions are warranted as there is no indication that Mills' counsel served excessive written discovery to Plaintiff or failed to serve a code-compliant privilege log to identify the documents withheld based on the applicable privileges. The court has previously considered Plaintiff's arguments as to Mills' discovery requests and the sufficiency of the privilege logs served in response. The court has not found that Mills' discovery requests or responses were non-compliant or improper.

Accordingly, the motion is denied.

VII.

MOTION FOR SANCTIONS FOR MISUSE OF THE DISCOVERY PROCESS (SPECIAL INTERROGATORIES, SET THREE)

A. Legal Standard

See Section VI(A) above.

B. Discussion

Plaintiff moves for monetary sanctions against Mills and his counsel for obstructing Plaintiff's access to lawful discovery by misusing the discovery process pertaining to Plaintiff's special interrogatories, set three. (Motion, at p. 1.)

As an initial matter, the court notes that Plaintiff's request for sanctions as to her special interrogatories, set three, was previously considered and denied when the court ruled on Plaintiff's motion to compel further responses. (Court Order, dated August 26, 2026.) The court found that Mills provided sufficient code-compliant responses to Plaintiff's special interrogatories and provided Plaintiff with an amended code-compliant privilege log for Mills to ascertain a response. (Ibid.) The court incorporates its analysis and finds that sanctions are not warranted here.

Accordingly, the motion is denied.

VIII.

MOTION FOR SANCTIONS FOR MISUSE OF THE DISCOVERY PROCESS (SPECIAL INTERROGATORIES, SET FOUR)

A. Legal Standard

See Section VI(A) above.

B. Discussion

Plaintiff moves for monetary sanctions against Mills and his counsel for obstructing Plaintiff's access to lawful discovery by misusing the discovery process pertaining to Plaintiff's special interrogatories, set four. (Motion, at p. 1.)

The court again notes that Plaintiff's request for sanctions as to her special interrogatories, set four, was previously considered and denied when the court ruled on Plaintiff's motion to compel further responses. (Court Order, dated August 26, 2026.) The court incorporates its analysis and finds that sanctions are not warranted here.

Accordingly, the motion is denied.

IX.

MOTION FOR SANCTIONS FOR MISUSE OF THE DISCOVERY PROCESS  
(HIDING EVIDENCE AND DISOBEYING ORDER)

A. Legal Standard

Code of Civil Procedure section 2023.030(a) gives the court the discretion to impose monetary sanctions against anyone engaging in a misuse of the discovery process. (Code Civ. Proc., § 2023.030, subd. (a).) Misuses of the discovery process includes: "(d) Failing to respond or to submit to an authorized method of discovery" and "(g) Disobeying a court order to provide discovery." (Code Civ. Proc., § 2023.010, subd. (d), (g).)

B. Discussion

Plaintiff moves for monetary sanctions against Mills and his counsel for obstructing Plaintiff's access to lawful

discovery by improperly withholding evidence/discovery even after the court ordered Mills to provide the discovery and Mills has disobeyed a lawful order issued by this court. (Motion, at p. 1.) Plaintiff argues that, on March 5, 2026, the court granted Plaintiff's Motion to Compel Further Discovery Responses to Plaintiff's Special Interrogatories, Set One, as to SROGs Nos. 1-5 and 7. (Ibid.) Plaintiff contends that Mills served untimely responses on April 15, 2026, to such requests and withheld responsive information as to Mills' username for (1) X (formerly Twitter); (2) iMessages; (3) Zoom. (Ibid.)

The court does not find that sanctions are warranted as Plaintiff concedes that she received Mills supplemental responses to SROGs Nos. 1-5, and 7. It also appears that Plaintiff received the information requested as to Mills' social media accounts in subsequent discovery. It does not appear that the Mills' failure to disclose such social media account was willful or a misuse of the discovery process.

Accordingly, the motion is denied.

X.

#### CONCLUSION

1.

Defendant Jonathan Everett Mills' Motion for Terminating Sanctions is DENIED.

2.

Plaintiff Shiloh Parker's Motion for Sanctions for Misuse of the Discovery Process (Ex Parte Communications) as to Defendant Jonathan Everett Mills is DENIED.

3.

Plaintiff Shiloh Parker's Motion for Sanctions for Violations of Code of Civil Procedure § 2023.010(i) as to Defendant Jonathan Everett Mills is DENIED.

4.

Plaintiff Shiloh Parker's Motion for

Sanctions Pursuant to Code of Civil Procedure § 128.7 as to Defendant Jonathan Everett Mills is DENIED.

5.

Plaintiff Shiloh Parker's Motion for Sanctions for Violations of Code of Civil Procedure § 2023.010(B) and (C) as to Defendant Jonathan Everett Mills is DENIED.

6.

Plaintiff Shiloh Parker's Motion for Sanctions for Misuse of the Discovery Process (Special Interrogatories, Set Three) as to Defendant Jonathan Everett Mills is DENIED.

7.

Plaintiff Shiloh Parker's Motion for Sanctions for Misuse of the Discovery Process (Special Interrogatories, Set Four) as to Defendant Jonathan Everett Mills is DENIED.

8.

Plaintiff Shiloh Parker's Motion for Sanctions for Misuse of the Discovery Process (Hiding Evidence and Disobeying Order) as to Defendant Jonathan Everett Mills is DENIED.